CONFIDENTIALITY AGREEMENT (FRANCHISE ENQUIRY)

This Confidentiality Agreement (the "**Agreement**") is made on 3 August 2026 (the "**Effective Date**").

BETWEEN

(1) **KOPI KITA SDN. BHD.** (Company No. SAMPLE-MY-1000), a company incorporated in Malaysia with its registered office at No. 1, Jalan Contoh Kopi, 50450 Kuala Lumpur (the "**Disclosing Party**" or "**Kopi Kita**"); and

(2) **HASRAT FOOD VENTURES SDN. BHD.** (Company No. SAMPLE-MY-7102), a company incorporated in Malaysia with its registered office at No. 27, Jalan Contoh Usahawan 5, Taman Contoh Jaya, 80100 Johor Bahru, Johor (the "**Recipient**").

BACKGROUND

(A) Kopi Kita operates twelve cafe outlets and a central roastery and has developed its own coffee recipes, roasting profiles, operations manual, staff training programme and outlet financial model.

(B) The Recipient has approached Kopi Kita about becoming a franchisee of the Kopi Kita brand in Johor (the "**Purpose**").

(C) To allow the Recipient to evaluate the opportunity, Kopi Kita is willing to disclose certain confidential information to the Recipient, on the terms of this Agreement.

1. DEFINITIONS

1.1 In this Agreement:

"**Confidential Information**" means all information, in any form, that Kopi Kita or its affiliates disclose or make available to the Recipient in connection with the Purpose, including recipes and formulations, roast profiles and green coffee specifications, the operations manual, standard operating procedures, training materials, supplier names and terms, outlet-level sales and cost data (the "**Unit Economics**"), site selection criteria, marketing plans and the fact and terms of the discussions.

"**Trade Secrets**" means Confidential Information that is a trade secret under the law of Malaysia, including recipes, roast profiles and the operations manual.

"**Representatives**" means the Recipient's directors, employees, professional advisers and financiers who need to know the Confidential Information for the Purpose and who have been approved in writing by Kopi Kita (approval not to be unreasonably withheld for a professional adviser or a bank considering a loan to the Recipient).

2. OBLIGATIONS OF THE RECIPIENT

2.1 The Recipient shall:

(a) keep the Confidential Information strictly confidential;

(b) use it only to evaluate the Purpose and not to start, operate, advise or assist any coffee or cafe business, whether under a franchise or otherwise;

(c) disclose it only to its Representatives, each of whom must first sign a written

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undertaking of confidentiality in terms no less strict than this Agreement, a copy of which the Recipient shall give to Kopi Kita on request;

(d) not copy, photograph or record any Confidential Information except as needed for the Purpose, and mark all copies as confidential;

(e) protect it with at least the care it uses for its own most sensitive information, and never less than reasonable care; and

(f) notify Kopi Kita immediately if it becomes aware of any loss, unauthorised access to or disclosure of Confidential Information.

2.2 The Recipient is liable for any act or omission of a Representative that would be a breach of this Agreement if done by the Recipient.

3. EXCLUSIONS

3.1 The obligations in Clause 2 do not apply to information that the Recipient proves:

(a) is or becomes generally available to the public other than through a breach of this Agreement;

(b) was already lawfully known to the Recipient, as shown by its written records, before disclosure by Kopi Kita;

(c) is lawfully obtained from a third party who is free to disclose it; or

(d) is independently developed by the Recipient without access to or use of the Confidential Information.

3.2 The Recipient may disclose Confidential Information to the extent required by law, by a court or by a regulator, if it gives Kopi Kita prompt written notice where lawful and discloses only what is required.

3.3 Information is not within Clause 3.1(a) merely because individual elements of it are public; a combination of elements is protected unless the combination itself is public.

4. OWNERSHIP

4.1 All Confidential Information and all intellectual property in it belongs to Kopi Kita. Nothing in this Agreement grants the Recipient any licence or right in the Kopi Kita name, marks, recipes or systems. Any right to operate a Kopi Kita outlet can arise only under a franchise agreement signed by both parties.

4.2 The Recipient shall not apply to register any trade mark, domain name, social media handle or design that is the same as or confusingly similar to any Kopi Kita brand.

5. NO OBLIGATION AND NO WARRANTY

5.1 Kopi Kita is not obliged to disclose any particular information or to grant a franchise. It may end the discussions at any time by written notice.

5.2 The Unit Economics are historical figures for Kopi Kita's own outlets and are given for information only. They are not a forecast or representation of what the Recipient's outlet will earn, and the Recipient must make its own enquiries and take its own advice.

6. TERM

6.1 This Agreement begins on the Effective Date and the Recipient's obligations continue for three (3) years from the Effective Date (until 2 August 2029).

6.2 Despite Clause 6.1, the Recipient's obligations in respect of Trade Secrets continue for as long as the information remains a trade secret, and do not end because the three-year period has passed.

7. RETURN AND DESTRUCTION

7.1 Within seven (7) days of Kopi Kita's written request, or when the discussions end, the Recipient shall return or permanently delete all Confidential Information and all notes and analyses derived from it, and an officer of the Recipient shall confirm this in writing.

7.2 Back-up copies that cannot practicably be deleted may stay in the Recipient's archive systems until overwritten in the ordinary course, provided they are not accessed and remain subject to this Agreement.

8. PERSONAL DATA

8.1 If the Confidential Information includes personal data of Kopi Kita's staff or customers, the Recipient shall handle it only for the Purpose and in line with the Personal Data Protection Act 2010.

9. REMEDIES

9.1 The Recipient acknowledges that a breach of this Agreement may cause Kopi Kita harm that cannot be fully compensated by damages, and that Kopi Kita may seek an injunction or specific performance in addition to damages and other remedies.

9.2 The Recipient shall pay Kopi Kita's reasonable legal costs of enforcing this Agreement where a court finds that the Recipient has breached it.

10. GOVERNING LAW AND DISPUTES

10.1 This Agreement is governed by the laws of Malaysia, including the Contracts Act 1950.

10.2 The courts of Kuala Lumpur have exclusive jurisdiction over any dispute arising from this Agreement, except that Kopi Kita may seek urgent injunctive relief in any court of competent jurisdiction.

11. GENERAL

11.1 This Agreement is the whole agreement on its subject matter and may be changed only in writing signed by both parties.

11.2 The Recipient may not assign this Agreement. Kopi Kita may assign it to a group company or to a buyer of its business.

11.3 If any provision is invalid or unenforceable, the rest continues in force.

11.4 Notices must be in writing and sent by hand, courier or email to the addresses above. Notices to Kopi Kita are marked for the attention of the Managing Director, Ms. Lim Contoh.

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11.5 This Agreement may be signed in counterparts and by electronic signature.

SIGNATURES

SIGNED for and on behalf of **KOPI KITA SDN. BHD.**

Signature: _____

Name: Ms. Lim Contoh Title: Managing Director

Date: _____

SIGNED for and on behalf of **HASRAT FOOD VENTURES SDN. BHD.**

Signature: _____

Name: Encik Hasrat Contoh Title: Director

Date: _____

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